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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09-10-2026

CORAM

THE HON'BLE MR. JUSTICE A.D.JAGADISH CHANDIRA

AND

THE HON'BLE MR.JUSTICE KRISHNASWAMY GOVINDARAJAN

W.P.Crl.No.2571 of 2026

CNR:{HCMA012247452026}

Case QR

V.Geetha
W/o Veeravel,
No.42, Kutty Andavar Kovil Street,
Chinnoor, Parangipettai,
Cuddalore District.

..Petitioner(s)

Vs

1. The State represented by,
   The Home Secretary,
   Home Department (Prison),
   Secretariat, Fort St.George, Chennai.

2. The Deputy Inspector General or Prisons,
   Chennai Range,
   Chennai.

3. The Superintendent of Prison,
   Central Prison I,
   Puzhal, Chennai.

4. The Inspector of Police,
   Parangipettai Police Station,
   Parangipettai,
   Cuddalore District.

..Respondent(s)

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Writ Petition (Criminal) filed under Section 226 of the Constitution of India to issue a Writ of Certiorarified Mandamus to call for the records relating to the proceedings of the third respondent in No.6084/Tha.Gu.2/2026 dated 26.05.2026 insofar as it imposes the condition of police escort upon the petitioner's husband *viz*. Veeravel, S/o.Palanivel, Convict Prisoner No.8170, PID No.42030, while granting 28 days ordinary leave, quash the same to the limited extent of the escort condition, and consequently direct the respondents to permit the petitioner's husband to avail the said 28 days ordinary leave without escort, subject to such reasonable conditions as may be imposed by this Court.

For Petitioner(s): Ms.S.Shiney

For Respondent(s): Mr.C.R.Malarvannan,
Additional Public Prosecutor

ORDER

(made by A.D.Jagadish Chandira, J.)

Challenging the order dated 26.05.2026 bearing No.6084/Tha.Gu.2/2026 passed by the third respondent and quash the same to the limited extent of the escort condition and consequently, direct the respondents to grant 28 days ordinary leave without escort, to the detenu, Veeravel, S/o.Palanivel, Convict Prisoner No.8170, PID No.42030, detained at Central Prison-I, Puzhal, Chennai, the petitioner has filed the present petition.

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2. It is the contention of the learned counsel for the petitioner that the petitioner's husband, who is the convict prisoner, was convicted for the offence under Section 6 of the Protection of Children from Sexual Offences Act, 2012 and sentenced to undergo ten years rigorous imprisonment and he has served the sentence for more than six years; therefore, the convict prisoner sought ordinary leave for 28 days under the Tamil Nadu Suspension of Sentence Rules, 1982, to attend his family affairs and responsibilities, pursuant to which, the second respondent, *vide* order dated 25.05.2026, in proceedings No.203/Mu.C1/2026, granted 28 days ordinary leave with police escort to him and subsequently, the third respondent, *vide* order dated 26.05.2026 bearing No.6084/Tha.Gu.2/2026, called upon the petitioner and the convict prisoner to furnish the requisite bonds/sureties for availing the leave; the convict prisoner has already been granted ordinary leave without escort on several occasions and during such time, no untoward incident has happened. Hence, he seeks quashment of the impugned order by granting ordinary leave without escort to the convict prisoner.

3. The learned Additional Public Prosecutor appearing for the respondents fairly submitted that since the petitioner's husband/convict prisoner has completed six years of imprisonment, he is entitled to 28 days ordinary leave per annum.

4. Heard the learned counsel on either side and perused the entire materials.

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5. It is seen from the records that the convict prisoner has already undergone sentence for more than six years and he sought ordinary leave only on the ground to attend his family affairs and responsibilities, which he is actually entitled to as per the Tamil Nadu Suspension of Sentence Rules, 1982.

6. In such view of the matter, the impugned order dated 26.05.2026 bearing No.6084/Tha.Gu.2/2026 passed by the third respondent is set aside to the limited extent of the escort condition and the convict prisoner *viz*. Veeravel, S/o.Palanivel, Convict Prisoner No.8170, PID No.42030, detained at Central Prison-I, Puzhal, Chennai, is granted twenty eight days ordinary leave **from 13.10.2026 to 09.11.2026** without escort. Further, the convict prisoner, during this leave period, shall appear before the Inspector of Police, Parangipettai Police Station, Parangipettai, Cuddalore District, everyday at 6.30 p.m. After expiry of the ordinary leave, the convict prisoner shall surrender before the prison authorities on or before **10.00 a.m. on 10.11.2026**. It is made clear that the convict prisoner shall utilize the leave only for the purpose, for which, it has been granted and shall not indulge in any other activities.

With the above directions, this writ petition (criminal) stands allowed.

(A.D.J.C.,J.) (K.G.R.,J.)
09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
nsd
Note: Issue copy of this order on 12.10.2026.

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To

1. The Home Secretary,
   Home Department(Prison),
   Secretariat, Fort St.George,
   Chennai.

2. The Deputy Inspector General or Prisons,
   Chennai Range,
   Chennai.

3. The Superintendent of Prison,
   Central Prison I,
   Puzhal, Chennai.

4. The Inspector of Police,
   Parangipettai Police Station,
   Parangipettai,
   Cuddalore District.

5. The Public Prosecutor,
   Madras High Court, Chennai.

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A.D.JAGADISH CHANDIRA J.
AND
KRISHNASWAMY GOVINDARAJAN J.

nsd

WP Crl. No. 2571 of 2026

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